

A study conducted by the Department of Education found that 43 percent of youth receiving remedial education services in detention failed to return to school after release. An additional 16 percent enrolled in school but ultimately dropped out. Due to the potential negative effects of detention, its use should be reserved for the most serious offenders.

Detaining juveniles in facilities separate from adults has been a common practice in the United States for almost two centuries, with its main purpose fluctuating between treatment and punishment. In recent decades, there has been a shift toward reducing the number of youth detained as well as increasing the available programming in detention facilities. As society continues to change, so too will the role and purpose of juvenile detention centers.

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See also: [Juveniles in Corrections, Landmark Cases Involving](#); [Sight and Sound of Juvenile Offenders](#); [State-Raised Youths](#)

Further Reading

- Burrell, S. (2013). *Trauma and the environment of care in juvenile institutions*. Los Angeles: National Center for Child Traumatic Stress.
- Desai, R. A., Goulet, J. L., Robbins, J., Chapman, J. F., Migdole, S. J., & Hoge, M. A. (2006). Mental health care in juvenile detention facilities: A review. *Journal of the American Academy of Psychiatry and the Law*, 34(2), 204–214.
- Holman, B., & Ziedenberg, J. (2006). *The dangers of detention: The impact of incarcerating youth in detention and other secure facilities*. Washington, DC: Justice Policy Institute.
- Pickett, R. S. (1969). *House of refuge: Origins of juvenile reform in New York State*. Syracuse, NY: Syracuse University Press.
- Platt, A. M. (1969). *The child savers: The invention of delinquency*. Chicago: University of Chicago Press.
- Twomey, K. (2008). The right to education in juvenile detention under state constitutions. *Virginia Law Review*, 94(3), 765–811.

Juveniles in Corrections, Landmark Cases Involving

During the 1960s and 1970s, the Supreme Court decided a number of juvenile court cases. However, the majority of these cases dealt with due process proceedings in the juvenile court. The court heard relatively few cases dealing with juvenile corrections; of these cases, they have focused largely on the sentencing of juveniles in adult courts. While the Supreme Court has heard few cases involving juvenile corrections, federal circuit courts have made many important rulings regarding juvenile corrections, specifically juveniles' right to treatment and conditions of confinement.

One issue that the Supreme Court has dealt with three separate times is the constitutionality of the juvenile death penalty. The Supreme Court first ruled on this issue in *Thompson v. Oklahoma* (1988). Thompson, a 15-year-old boy, was charged, along with three other individuals, with murdering his brother-in-law because he had been physically abusing Thompson's sister. Though Thompson was considered a juvenile under Oklahoma law, the prosecutor decided to charge Thompson as an adult. Ultimately, Thompson, along with his codefendants, were found guilty of first-degree murder and were sentenced to death. In this case, the Supreme Court was charged with deciding whether it was constitutional to execute offenders who committed their crimes while under the age of 16.

The court analyzed the constitutionality of this practice by assessing whether it aligned with "evolving standards of decency that mark the progress of a maturing society." Utilizing a broad range of criteria to measure national standards, the court held that the national consensus did not support the imposition of death for juveniles under the age of 16. Although this case did help to clarify the age limit at which juveniles may not receive a sentence of death, it left open the question of whether it was constitutional to sentence any juvenile to the death penalty. The court clarified their stance a year later in *Stanford v. Kentucky* (1989).

Stanford v. Kentucky involved two separate, but similar, cases that had been consolidated by the court when granting certiorari. The first case involved a 17-year-old, Kevin Stanford, who was charged with a number of crimes including first-degree murder, sodomy, robbery, and receiving stolen property. Though he was still eligible based on his age for prosecution in juvenile court, the seriousness of the crimes coupled with previous failed attempts of rehabilitation by the juvenile system, led to him being tried in adult court. At trial, Stanford was sentenced to death.

The second case involved Heath A. Wilkins, a 16-year-old, who was charged with first-degree murder, armed criminal action, and carrying a concealed weapon. Prosecutors sought to try Wilkins in adult court due to the nature of the crimes. Wilkins pleaded guilty to all the charges, and both the prosecutor and Wilkins asked for the death penalty, which was granted. In this case, the Supreme Court was to decide whether it was cruel and unusual punishment to sentence juveniles, who were between the ages of 16 and 17 when they committed their crimes, to death. In a 5–4 decision, the court held that it was constitutional for states to impose a death sentence on individuals who were aged 16 or 17 at the time of their crimes. With this decision, the court made clear that the minimum age at which juveniles may constitutionally be sentenced to death is 16 years old.

Following the decision in *Stanford*, the issue of the death penalty for juveniles remained untouched by the Supreme Court until 2005 in the case of *Roper v. Simmons*. In 1993, 17-year-old Christopher Simmons, along with a 15-year-old accomplice, were charged with brutally murdering a woman with whom Simmons had recently been involved in a car accident. Simmons was tried and convicted in adult court and received a death sentence. In 2002, asserting that the Supreme Court's decision in *Atkins v. Virginia* (2002), which eliminated the death penalty for offenders with intellectual disability, established the same constitutional prohibition against the death penalty for juveniles, Simmons filed a habeas corpus petition with the Missouri Supreme Court. The Missouri Supreme Court agreed with Simmons and converted his sentence to life without the possibility of parole.

In order to revisit the question of the death penalty for juveniles, the Supreme Court decided to hear the case. In order to make their decision, the court once again looked at the national standards of decency. They found that as of 2005, 30 states had already eliminated the death penalty for juveniles, and in the states where it remained a sentencing option, executions were rare. The Supreme Court also referenced the research on the development of the human brain, which concluded that juveniles cannot be cognitively compared to adults. Unlike adults, the research argued, juveniles lack the ability to be in complete control of their emotions and behavior. In other words, like intellectually disabled individuals, juveniles have diminished capacity. A final factor that impacted the court's decision was the international stance on the death penalty for juveniles. Of all the democratic nations, the United States was the only one left that allowed for the execution of juveniles. Based on the above factors, the court held that it was unconstitutional to execute individuals who committed their crimes while under the age of 18.

With the elimination of the death penalty for juveniles, the next most severe punishment available to juveniles was life without the possibility of parole. Due to this fact, it is no surprise that the court soon was asked to assess the constitutionality of these sentences for juveniles. The first case dealing with life without the possibility of parole for juveniles was *Graham v. Florida* (2010). This particular case dealt with whether a sentence of life without the possibility of parole could be imposed on a juvenile who committed a nonhomicide offense.

In this case, Terrence Graham, a 16-year-old, was convicted in adult court of armed home robbery. This conviction occurred six months after having served a yearlong sentence for another armed burglary and attempted armed robbery. Graham was sentenced to life without the possibility of parole. Graham appealed his sentence, arguing that it constituted cruel and unusual punishment. Although both the Florida District Court of Appeals and the Florida Supreme Court both disagreed with Graham's assertion, the Supreme Court held that Graham's sentence did represent cruel and unusual punishment. The court held that juveniles can only be sentenced to life without the possibility of parole for cases involving homicide.

Two years after the ruling in *Graham*, the issue of life without the possibility of parole for juveniles once again made its way to the Supreme Court. In *Miller v. Alabama* (2012), the court assessed whether the imposition of a sentence of life without the possibility of parole for juveniles violated the Eighth Amendment prohibition against cruel and unusual punishment. This case was decided alongside another case, *Jackson v. Hobbs*. In both cases, 14-year-old boys who had been convicted of murder were granted mandatory sentences of life without the possibility of parole. The court ruled that mandatory sentences of life without the possibility of parole were unconstitutional. However, they failed to eliminate life without the possibility of parole sentences for juveniles altogether. Due to the court's failure to provide specific criteria for how to determine when life without the possibility of parole is an appropriate sentence for juveniles, it is likely that the court will one day again have to revisit this issue.

These cases are the only cases involving juvenile corrections for which the Supreme Court has granted certiorari. However, federal circuit courts have been influential in cases involving juvenile corrections. The majority of these cases have dealt with conditions of confinement and the right to treatment for incarcerated juveniles. The first federal circuit court case to deal with either of these issues was *Creek v. Stone* (1967). In this case, the court held that under the principle of *parens patriae*, juvenile correctional facilities should provide

similar environments to what a child should have received at home. In *Martarella v. Kelly* (1972), a federal district court expanded the requirements of *Creek* by specifying elements that should be available in juvenile facilities including education and recreation programs, caseworkers, and access to psychiatric services.

Another federal court case dealing with conditions of confinement was *Inmates of Boys Training School v. Affleck* (1972). In this case, a district court in Rhode Island set minimum standards in a variety of different areas of juvenile institutional life including clean bedding, personal hygiene supplies, appropriate clothing and clothing changes, daily showers, access to books, and nursing staff on duty 24 hours a day. The courts in these decisions concluded that the main purpose of the juvenile justice system is rehabilitation, and as such juveniles had a statutory right to treatment.

A final landmark case involving juveniles' right to treatment was *Nelson v. Heyne* (1974). Citing the *Martarella* case, the court ruled that juveniles do not just have a statutory right to treatment but a constitutional right to treatment. Based on the current shift toward rehabilitation in juvenile justice, it is likely that in the upcoming decades both the federal courts and the Supreme Court will be asked to review cases involving some of the more punitive practices that were implemented during the get tough era.

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See also: [Constitution as a Source for Prisoners' Rights, The](#); [Death Penalty Legal Issues](#); [Evolving Standards of Decency](#); [Habeas Corpus Writs](#); [Juvenile Detention Centers](#)

Further Reading

- Borra, J. E. (2005). Roper v. Simmons. *Journal of Gender, Social Policy & the Law*, 13(3), 707–715.
- Feld, B. C. (2008). A slower form on death: Implications of Roper v. Simmons for juveniles sentenced to life without parole. *Notre Dame Journal of Law, Ethics, & Public Policy*, 22, 9–65.
- Frisch, M. (1974). Constitutional right to treatment for juveniles adjudicated to be delinquent—Nelson v. Heyne. *American Criminal Law Review*, 12, 209.
- Hemmens, C., Steiner, B., & Mueller, D. (2013). *Significant cases in juvenile justice* (2nd ed.). Oxford, U.K.: Oxford University Press.
- Lerner, C. S. (2012). Sentenced to confusion: Miller v. Alabama and the coming wave of Eighth Amendment cases. *George Mason Law Review*, 20(1), 25–40.
- Scott, E. S. (2012). Miller v. Alabama and the (past and) future of juvenile crime regulation. *Law & Inequality*, 31, 535–541.
- Smith, R. J. (2010). Redemption song: Graham v. Florida and the evolving Eighth Amendment jurisprudence. *Michigan Law Review First Impressions*, 108, 86–94.